

26STCV10209 26STCV10209

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-13

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Case Number: 26STCV10209 Hearing Date: July 13, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the July 13, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the July 13, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

WALTER

ACOSTA vs TETRA TECH EC, INC., 26STCV10209

[TENTATIVE] MINUTE
ORDER

Plaintiff's

Counsel has failed to file proof of service of the operative Summons and Complaint on all named defendants.

Specifically, Plaintiff's Counsel has failed to file proof of service of the operative Summons and Complaint on TETRA TECH EC, INC. and JAIME GUARAJE

By no later than September

7, 2026, Plaintiff's Counsel must file either proof of service of the operative

Summons and Complaint on TETRA TECH EC, INC. and JAIME GUARAJE or a declaration explaining the failure to file proofs of service of the operative Summons and Complaint on TETRA TECH EC, INC. and JAIME GUARAJE, setting forth any and all efforts undertaken to attempt service of the operative Summons and Complaint on TETRA TECH EC, INC. and JAIME GUARAJE, and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Summons and Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file

proof of service of the operative Summons and Complaint on TETRA TECH EC, INC. and JAIME GUARAJE by September 7, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are

ordered to file a timely Notice of Appearance within 30 days of service of the operative Summons and Complaint on them.

If any named

Defendant fails to timely respond to service of the operative Summons and Complaint by filing a Notice of Appearance, Plaintiff must timely seek and obtain entry of default against all such named Defendants who fail to timely file a Notice of Appearance.

The operative

complaint currently does not include any claim for civil penalties pursuant to Labor Code section 2699 (PAGA penalties).

If Plaintiff wishes to amend the Complaint to add a claim for PAGA penalties and is prepared to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint adding a claim for PAGA penalties as long as Plaintiff files and serves such amended complaint by no later than August 10, 2026. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if Plaintiff voluntarily wishes to amend the operative Complaint to add a claim for PAGA penalties, the Court is simply granting leave for Plaintiff to do so. By no later than August 10, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

The previously
imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to September 14, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than September 7, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.